



TAPWAY EMPLOYEE HANDBOOK

Revision: 5

REVISION HISTORY

No.	Revision Date	Revision No.	Revision Description	Approved by	Approval Date
1.	16/1/2023	0	Documenting the first Tapway Employee Handbook	Lim Chee How	22/3/2023
2.	16/8/2023	1	Updating Attendance & HR System	Siti Hajar Ramli	21/8/2023
3.	14/2/2024	2	Updating Attendance, claim expenses, townhall arrangement & notice period policy	Lim Chee How	15/2/2024
4	9/7/2024	3	Updating probation notice period, claim expenses	Lim Chee How	9/7/2024
5.	15/12/2025	4	Updated policies based on latest Employment Act	Azmin Farhana	15/12/2025
6.	11/2/2026	5	Updated sick leave, maternity leave and table of content according to latest Employment Act	Azmin Farhana	12/2/2026

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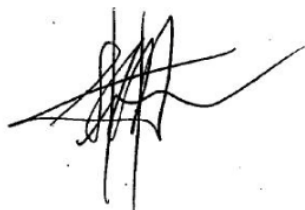


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SCOPE OF HANDBOOK

This Handbook includes personnel policies and procedures that are applicable to all permanent employees of the Group. However, the respective department might have a more detailed departmental instruction, which relate to a specific department or area that are not stated in this Handbook.

INTRODUCTIONS

This handbook is designed to provide you with information about working conditions, employee benefits and policies affecting your employment. You should read, understand and comply with all provisions of the handbook. It describes many of your responsibilities as an employee and to serve as a reference document. If you are in doubt in certain contents of this handbook, you should seek clarification from the Human Resource Department.

No employee handbook can anticipate every circumstance or question about policy. As we continue to grow, the need may arise, and the company reserves the right to revise, supplement or retract any policies or portion of the handbook from time to time as it deems appropriate, in its sole absolute discretion. All employees will be notified of such changes to the handbook as they occur.

No part of this employee handbook shall be photocopied and distributed to a third party. Any printed versions of this handbook must be returned to the Company upon termination of service.

Remuneration & Human Capital Committee Member:

Lim Chee How - CEO & Director
Siti Hajar Binti Ramli
Azmin Farhana Binti Mohd Kamal

Date : January 2023

FOREWORD FROM THE MANAGEMENT

Dear New Team Member,

First let us congratulate you on your appointment and welcome you to Tapway Sdn Bhd. Since you will be spending most of your working hours in the office, we hope you will come to consider it as your second home.

This Handbook is designed to introduce and guide you on the Company's Scheme of Services. Whilst it serves as a communication vehicle from the Company to its Employees, it also serves as a reference for you. The Handbook shall also be updated from time to time and the revisions shall be forwarded to you.

The success of the Company depends on your commitment and professionalism, and this combined with great team effort would undoubtedly provide the highest level of service needed to be the best in our field.

We look forward to your contribution and support to Tapway Sdn Bhd.

The Management

COMPANY'S VISION, MISSION AND CORE VALUES

Our Vision

- To democratize AI Vision by allowing anyone to build, train and deploy vision technology solutions quickly and affordably.

Our Mission

- To build a platform that provides technology solutions to businesses with physical premises in order to help eliminate low-skilled manual labor, improve service quality & experience, and enhance safety & security.

Our Core Values

LIGHT THE FIRE IN YOUR HEART

- Love what you do, and do what you love. Be passionate about your work and seek to learn, improve and accomplish goals everyday.
- Be committed to and fully accountable for your goals in alignment with company's collective priorities
- We commit to the team. Commit to quality. Commit to collaborate. Commit to learn. Commit to do the best we can, every day again. Commit to the Sprint Goal. Commit to be professional. Commit to self-organize. Commit to excellence.

OBSESSED ABOUT CUSTOMERS AND RESULTS

- Build our products and innovation around customers, not what we want.
- Always listen to customer feedback openly.
- Be ready to react quickly to changing customer requirements and environments.
- Always create short term, mid term and long term goals and strive to achieve results.
- Do not sacrifice quality because of time limitations. Strive for the best!

WE ARE FAMILY

- Teamwork - Teamwork makes the dream work. "Alone, we can do so little, together, we can do so more."
- Courage - Do not be afraid to raise concerns about the company or your own work. Have courage to challenge others for what you believe will benefit the company as a whole. We welcome healthy conflicts
- Honesty - We are open and honest about our work, our progress, our learning and our problems. We are open in sharing feedback and learning from one another
- Diversity and empathy - We are also open for people, and working with people from diverse backgrounds; acknowledging people to be people.
- While being honest, respect each other. Value and honour another person, both his or her words and actions, even if we do not approve or share everything he or she does. It is accepting the other person and not trying to change them.

DREAM BIG, THINK DIFFERENT, ACT FAST

- Bias for action - You're not afraid to make decisions and take action, even when (especially when) you face uncertainty
- Be brave, be creative and think out of the box to solve any particular issue. Be positive in the face of great challenge
- Have courage to take calculated risks, if it means more success for yourself and the company as a whole

ALWAYS DAY ONE

- Never stop learning and continue to set personal growth goals for yourself. Make these personal growth goals available to the company so everyone will help each other to achieve these goals
- Adopt a growth mindset, be curious about everything and think like a beginner a.k.a “shoshin”, meaning to adopt an attitude of openness, eagerness, and lack of preconceptions when studying a subject, even when studying at an advanced level, just as a beginner would.

Section 1: The Employment

1.1 The contract of employment

1.1.1 Types of employments

Employment Type	Description & Entitlements
Full Time - Permanent	Status: Confirmed employees who have successfully completed probation. Benefits: Full entitlement to Company benefits. KPIs: Reviewed quarterly and annually. Termination: Subject to due inquiry and notice periods as per the Employment Contract.
Full Time - Probationer	Status: New employees undergoing a probationary period (typically 3 to 6 months). Benefits: Limited benefits as specified in this Handbook. KPIs: Reviewed quarterly. Final review 1 week before probation expiry. Outcome: Confirmation, Extension, or Non-Confirmation. Notice: As per the Employment Contract (Statutory minimums apply).
Fixed Term Contract (Part-time / Freelance)	Status: Employed for a specific project or duration. Benefits: Not entitled to permanent Company benefits unless stated in the Offer Letter. Terms: Strictly governed by the specific contract period.
Internship	Status: Trainees undergoing practical training. Benefits: Monthly allowance (if applicable) and specific leave as per this Handbook. Not entitled to standard permanent employee benefits.

1.1.2 Employee Job Classifications and Grade

Job Classification	Grade	Category	Position
Senior Management	SM1	Director	■ Executive Director ■ Chief Executive Officer (CEO)
	SM2	Principal of Strategic Business Unit (SBU)	■ Chief Operating Officer (COO) ■ Chief Finance Officer (CFO) ■ Chief Technology Officer (CTO)
Management	M1	Head of Strategic Business Unit (SBU)	■ General Manager ■ Senior Department Manager
	M2	Manager	■ Manager or Team Lead
Assistant Management	AM1	Assistant Manager (Only applicable with existed Manager in the company)	■ Assistant Manager or Team Lead
Profesional	P1	Specialist	■ Senior Executive ■ Senior Engineer ■ Senior Project Manager
Executive	E1	Senior L1 Executive	■ Senior Executive ■ Senior Engineer ■ Senior Project Manager
	E2	Senior L2 Executive	■ Senior Executive ■ Senior Engineer ■ Senior Project Manager
	E2	Executive	■ Junior Executive ■ Junior Engineer ■ Junior Project Manager
Non-Executive	NE1	Non-Executive	■ Clerk ■ Receptionist ■ Internship/ Trainee
	NE2	General Worker	■ Dispatch ■ Driver ■ Housekeeper

1.1.3 Appointment

- **Offer Letter:** Every employee must sign their employment contract within one (1) week of the enrolment date
- **Verification:** The Company reserves the right to verify all information provided. Misrepresentation of material facts (e.g., educational qualifications, criminal history) constitutes a major misconduct and grounds for immediate dismissal
- **Data Updates:** Employees must notify HR immediately of any changes to personal details (address, marital status, next of kin) to ensure records comply with the *Personal Data Protection Act 2010 (PDPA)*

1.2 Probation and confirmation

- **Duration:** Typically 3 or 6 months, as stated in the Letter of Appointment.
- **Evaluation:** Performance will be reviewed against KPIs.
- **Outcome:**
 - *Confirmation:* Formal letter issued. Entitlement to full benefits commences.
 - *Extension:* If performance is borderline, probation may be extended in writing.
 - *Termination:* If performance is unsatisfactory, the Company may terminate the contract with notice as per the employment terms.
- **Deemed Confirmation:** There is no "automatic" confirmation in Malaysia. Employees remain on probation until a written confirmation letter is issued, or until the probation is formally extended or terminated.

1.3 Termination and retirement

1.3.1 Termination of Service

- **Notice Period:** Both parties must give the notice period stated in the Employment Contract. In the absence of a contract provision, the notice periods in Section 12 of the *Employment Act 1955* shall apply.
- **Termination for Misconduct:** The Company reserves the right to dismiss an employee without notice following a due inquiry (Domestic Inquiry) where the employee is found guilty of major misconduct.
- **Performance:** Termination for poor performance shall follow due process, including warnings and a Performance Improvement Plan (PIP).

1.3.2 Retirement

- **Retirement Age:** The minimum retirement age is **60 years**, pursuant to the *Minimum Retirement Age Act 2012*.
- **Optional Retirement:** An employee may voluntarily retire earlier than 60 if agreed upon in the employment contract.
- **Exemptions:** This Act does not apply to probationers, non-citizens, domestic servants, or fixed-term contracts not exceeding 24 months.

1.4 Employment VISA

1.4.1 Employee's VISA

- **Employee Visa:** Costs for the primary employee's Employment Pass (EP) are borne by the Company. If the employee resigns or fails probation within the first year (or specific bonded period), the Company reserves the right to claw back these costs from the final salary, subject to Section 24 of the *Employment Act*.
- **Dependant Visa or other relevant Pass:** Costs are fully borne by the employee.
- **Cancellation/Transfer:**
 - *Fully Waived:* If proper 1-month notice is given AND more than 50% of the Visa period has been served.
 - *Partial/No Waiver:* If notice is short or less than 50% of the period is served, costs may be deducted from the final salary.

Section 2: Company Code Of Conduct

2.1 Company working hours and rest day

Days	Working Hours
Monday - Friday	8.00 am - 4.00 pm; or 9.00 am - 5.00 pm
Saturday & Sunday	Rest Day
Lunch Break	Flexible 1 hour
Lunch Break on Friday (For male Muslim employees)	12.30 pm - 2.30 pm

- Compulsory 3 days working from office, and it is compulsory to attend every Townhall Meeting being conducted which is once a month. (Subject to change)
- Clocking in via **Jibble App** [mobile app] when you arrive at office is compulsory
- Clocking out via **Jibble App** [mobile app] when you leaving the office is compulsory
- The Clock in & Clock out via **Jibble App** using mobile app ONLY is highly important. If not, your attendance and GPS won't be recorded and will be considered as MIA.
- Clocking via Scan your face OR Tap your IC/TnG card is solely to open the office glass door.

2.2 Flexible Work Arrangements

- **Policy:** Employees are entitled to work remotely (WFH) for 3 days a week, with mandatory office attendance on 2 specific days (currently including Townhall days).
- **Statutory Right to Apply:** Pursuant to *Section 60P* and *60Q* of the Employment Act, employees may formally apply for Flexible Work Arrangements (changes to hours, days, or location). The Company shall respond to such applications in writing within 60 days.
- **Productivity:** Working from home is a privilege. Employees must remain contactable and clock in/out via the Jibble App. Failure to clock in or lack of responsiveness may result in the revocation of WFH privileges or disciplinary action (MIA).
- **Section 15(2) Employment Act:** An employee absent for more than two (2) consecutive working days without prior leave or reasonable excuse, and without informing the Company, is deemed to have broken their contract.

2.3 Gazetted Public Holidays

- All employees shall be entitled to paid holidays on all gazetted Federal or State Public holidays applicable to the state in which they are based.
- All public holidays recognized and approved by the company shall be circulated to all employees on the commencement of each calendar year.
- All sudden proclaimed public holidays from the Government of Malaysia or the State ruler which are not gazetted as the Company's public holiday shall be considered as a paid holiday.
- If a gazetted public holiday falls on Sunday, an additional paid holiday shall be granted in substitution thereof.
- An employee who is absent from work on the working day without prior approval, immediately preceding or succeeding the public holiday, he/ she is not entitled to the holiday pay.

2.4 Communication channel

- Slack

- All new joined employees will be added to Slack Tapway Team and relevant sub-group channel.
- Slack is main channel for any work communication between peers and colleagues.
- All employees must put their profile picture with their current/updated face.
- All employees must ensure their Slack status should be online during the working hours & to update their Slack status if they are not available during that specific time. Etc lunch time/prayer time.
- Engagement activities will be initiated by HR department via Slack channel and all employees are encouraged to participate.
- Whatsapp
 - All new joined employees will be added to WhatsApp Tapway Team and relevant sub-group.
 - WhatsApp is semi-formal channel to communicate between peers and colleagues.
- Company email
 - All new joined employees will be added to Gmail Tapway Team and relevant sub-group.
 - All new joined employees will be given company-personal email address upon enrollment.
- All communication channels will be removed upon employee's resignation or termination served notice period.

2.5 Business attire

- Employees must at all times appear neat and dignified in casual and suitable attire in their course of duty during working hours.
- When dealing with customers, employees are expected to present a clean, neat and professional appearance.

2.6 Leave rule

2.6.1 Full time - Permanent or confirmed position

- Entitled to all type of leaves
- Planned Annual or Unpaid Leave - less than 5 days leave
 - **Must be applied 3 days before**
 - Must be approved by HOD
 - Leave taken without approval will be considered as AWOL
- Planned Annual or Unpaid Leave - more than 5 days leave
 - **Must be applied 5 days before**
 - Must be approved by HOD
 - Leave taken without approval will be considered as AWOL
- Unplanned Annual or Unpaid Leave - less than 5 days leave
 - Can be applied on the day
 - Must have legitimate reason and proof
 - Any unplanned leave taken will affect the KPI performance scores

2.6.2 Full time - Probation position

- Entitled to a pro-rated Annual Leave, Sick Leave, and Compassionate Leave
 - Annual Leave - 1.5 days/completed month
 - Sick Leave - 1 day/completed month
 - Compassionate Leave - 1 day/occasion/year
- Planned Annual Leave - less than 3 days leave
 - More than 3 days leave is not allowed
 - Must be applied 3 days before
 - Must be approved by HOD
 - Leave taken without approval will be considered as AWOL

- **Unplanned Annual Leave - 1 day leave**
 - This is considered as Emergency Leave
 - Only 1 days is allowed
 - Can be applied on the day
 - Must have legitimate reason and proof
 - Any unplanned leave taken will affect the performance scores

2.6.3 Internship

- **Entitled to Annual Leave, Sick Leave, and Compassionate Leave**
 - Annual Leave - 1 day/completed month
 - Sick Leave - 1 day/completed month
 - Compassionate Leave - 1 day/occasion/year
- Must be applied 3 days before, except for Compassionate Leave
- Emergency Leave is not allowed
- Must be approved by HOD
- Leave taken without approval will be considered as AWOL

2.7 Utilities and company's assets usage

2.7.1 Utilities

- All employees are responsible and should contribute to create a conducive working environment.
- Employees should try to conserve water and electricity. Where applicable, lights should be switched off during lunch hours and after office hours.
- All employees should ensure that their working areas are clean. Any unwanted items such as papers and boxes need to be disposed.
- All employees should not litter the common areas, pantries and toilets.

2.7.2 Use of company's assets

- When using company's property, all employees are expected to safeguard and follow the operating instructions, safety standards and guidelines.
- All company assets shall include but not limited to laptop, camera, projector, voice recorder, broadband, etc.
- The improper, careless, negligent, destructive or unsafe use or operation of Company's asset can result in disciplinary action. The employee may be held liable for any damages arising from his/ her own negligence.
- Any loss, damage or stolen of Company property has to be reported to the HR department immediately. A police report should also be made where applicable.
- The cost of loss and stolen of Company asset will be borne by the staff as follows :

Date of loss from the purchase date	Amount payable to the company (%)
Less than 1 year	75% from the cost of the missing company asset
1 - 2 years	50% from the cost of the missing company asset
3 - 4 years	25% from the cost of the missing company asset
More than 5 years	10% from the cost of the missing company asset

2.8 Company confidential information

- All employees whether still in employment or after termination of employment are not to divulge confidential Company information, except by the discretion or expressed approval of the Company.
- An employee shall not communicate or discuss confidential information that comes to his/ her knowledge in the course of his/ her employment with the Company to another person(s) and shall take all possible precautions to prevent such confidential information from reaching to any third parties.
- It is the obligation of any employee who receives requests seeking the disclosure of information to contact his HOD for guidance.
- The Company shall take legal action in any situation involving the unauthorized disclosure of confidential information.
- Any copy of summaries or compilations thereof shall be returned to the Company upon the termination of the employee's employment.

2.9 Access to personal files

- No employee shall has access to other employee's personal information and files.
- All forms or files relating to personal information shall keep confidential digitally by HR department.

2.10 Employee relations

2.10.1 It is the policy of the company to provide its employees with :

- The Company shall provide its employees with opportunities for development and the rewards of work well done.
- The Company will be frank, fair and honest and to respect the employees' right.
- The Company shall upkeep all employees with matters and decisions that relevant to the employees' jobs.

2.10.2 The Management has consented the Best Employee Award to be given to the selected employees. All employees are eligible to be nominated for the Best Employee Award, provided they meet the prerequisites for qualification as stated:

- Must have completed twelve (12) months of employment.
- No disciplinary record in the awarded year.
- Have an outstanding performance in their departments respectively.

2.10.3 Every year, an employee will be chosen to receive the Best Employee Award.

- All HODs shall nominate an employee from their respective departments for the Best Employee Award.
- The nominated name will be forwarded to HR department via the Best Employee Award nomination form.
- Invitation for polling will be extended to all HODs to select the most qualified employee to receive the Best Employee Award.
- The Best Employee will receive special prize with a Certification of Best Employee Award and a plaque.

Section 3: Wages

3.1 Payment of wages

3.1.1 Payment method

- Malaysia account - the wages will be transferred to any employee's preferred bank account with no charges
- Overseas account - the wages will be transferred to any employee's preferred bank account with charges
 - The employee shall provide the detailed bank information:
 - Bank name
 - Bank account number and currency
 - IFS code

- Swift code
- Bank branch name
- The transaction charges will be covered by the employees

3.1.2 Payment date

- Before/On the 26th of every month
- If the 26th falls on rest day or public holiday, company will release the wages on the last working day before the rest day or public holiday
- E.g:

Day	M	Tu	W	Th	F	Sa	Su
Date	21	22	23	24	25	26	27

- The 26th falls on Saturday, which is the rest day, so the wages will be released on the 25th, Friday.

3.2 Statutory contributions and deductions

3.2.1 Statutory contributions

- Employees Provident Fund (EPF)
 - For local employees contributions is 11% for, changes might applied based on the government notices
 - Employers contributions is 13% based on the government notices
 - For foreign employees contributions is 2% for, changes might applied based on the government notices
 - Employers contributions is 2% based on the government notices
- Social Security Organization (SOCSO) and Employee Insurance Scheme (EIS)
 - The company will contribute to SOCSO and EIS based on its proportion and employees' monthly contribution as required by the Social Security Act 1969.
 - Applies for both employees and employers contributions
 - Applies to Malaysian and foreign employees
- Income Tax
 - The company will make monthly Income Tax deductions from employee's salary in accordance to the requirements of the Income Tax Act 1967
 - Applies to all local employees, who meet the salary requirements
 - For Foreign Employees, subject to tax resident status as per below:
 - **Tax Residents:** Subject to the same resident tax rates as local employees.
 - **Non-Residents:** Subject to a flat tax rate of **30% on taxable income** in Malaysia for the first 183 days/6 months in Malaysia.

3.2.2 Other deductions

- Any advance salary or loans will be deducted from the final salary of the month upon CEO approval
- Unpaid leave or pro-rated wages will be deducted from the final salary of the month

3.3 Salary increment

- The employee must be employed for more than 6 months upon the increment date
- Employee's employment age more than 6 months but less than 1 year will have pro-rated increment

- Employee who recently received increment in less than 6 months upon the increment date, won't be entitled for Annual Increment
- Employee who recently received increment in more than 6 months but less than 1 year upon the increment date, will have pro-rated increment
- The increment amount will be based on last withdrawn basic salary (without allowance & commissions)
 - $\text{Basic Salary} + [\text{Increment (\%)} \times \text{Basic Salary} \times \text{Pro-rated value}]$

3.4 Pro-rated salary calculation

- Pro-rated salary based on working days calculation
 - Period: 1 month = 28 days / 29 days / 30 days / 31 days [INCLUDE weekends]
 - E.g 1: Full month = Full pay
 - E.g 2: Pro-rated month due to unpaid leave or resignation
 - The last working day is 22/6/2022
 - The period working days of the month is 1/6/2022 - 22/6/2022
 - Equivalent to 22 working days (include weekends)
 - $\text{Pro-rated wages} = [\text{Basic Salary}/30 \text{ days}] \times 22 \text{ days}$
 - E.g 3: Pro-rated month for new joiners
 - The first working day is 16/5/2022
 - The period of working days of the month is 16/5/2022 - 31/5/2022
 - Equivalent to 16 working days (include weekends)
 - $\text{Pro-rated wages} = [\text{Basic Salary}/31 \text{ days}] \times 16 \text{ days}$

3.5 Overtime

3.5.1 Terms and definitions

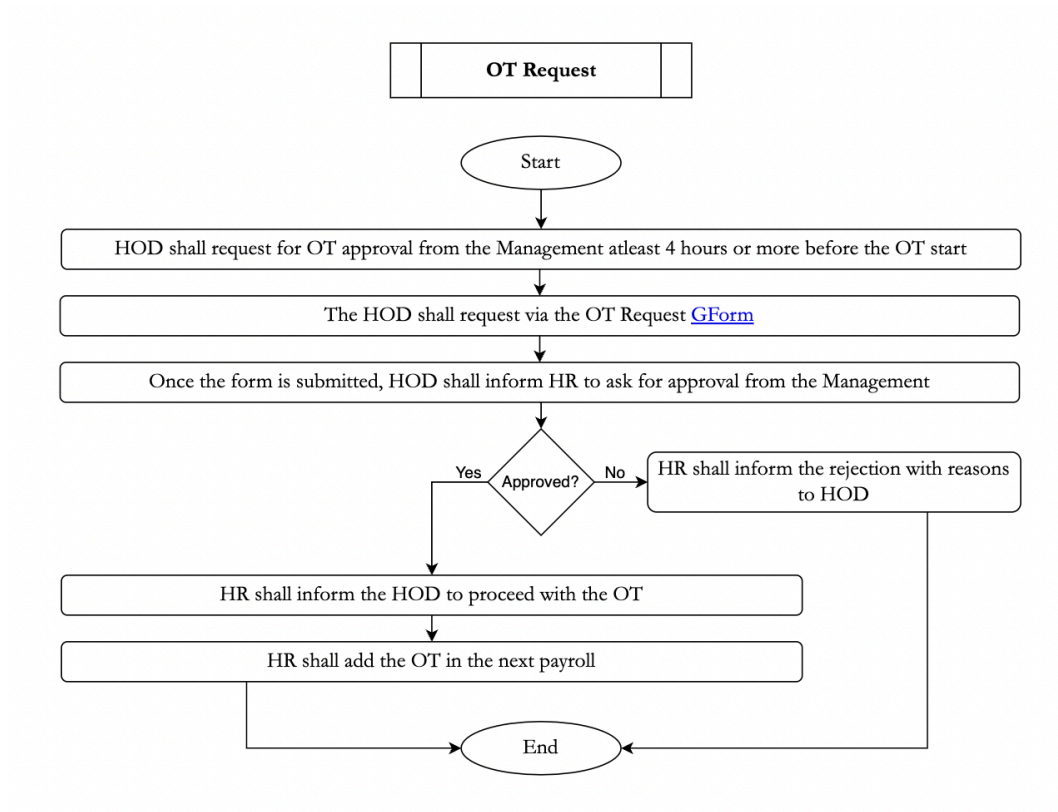
- Ordinary Rate of Pay (ORP) is daily rate
 - $\text{ORP} = \text{Basic Salary}/26 \text{ days}$
- Hourly Rate
 - $\text{HRy} = \text{ORP}/8 \text{ hours}$
- E.g: Basic salary is RM 3000.00
 - $\text{ORP} = \text{RM } 3000.00/26 \text{ days} = \text{RM } 115.39$
 - $\text{HRy} = \text{RM } 115.39/8 \text{ hours} = \text{RM } 14.43$

3.5.2 As defined in the Employment Act, 1955;

- Employee who earning basic salary below RM 4000.00 are entitled for Overtime pay.
- Employee who earning basic salary more than RM 4000.00 are not entitled to Overtime pay. However, the employee may apply for approval from the Senior Management, HR department and CEO with special calculations or Time Off in Lieu (TOIL) / Compensatory Time.
- All overtime work must be requested by HOD/CEO to HR department and submitted by 20th of the month.

3.5.3 Procedure to apply Overtime

- Employee who required to work overtime shall inform the HOD for approval.
- The HOD shall assess the request based on the work urgency and get approval from the CTO/CEO before proceeding with the request.
- Once the CTO/CEO has approved the request, the HOD shall inform HR for formality purposes.
- Refer to the SOP below:



3.5.4 Overtime pay for salary below RM 4000.00 conditions:-

- Monday to Friday from 7.00 pm to 7.00 am the next day
 - Overtime pay = HRy x 1.5
- Rest day - OT hours less than and equal to 4 hours
 - Overtime pay = ORP x 0.5
- Rest day - OT hours more than 4 hours but less than 8 hours
 - Overtime pay = ORP x 1
- Rest day - OT hours more than 8 hours
 - Overtime pay = ORP + (HRy x 2)
- Public holidays - OT hours less than 8 hours
 - Overtime pay = ORP x 2
- Public holidays - OT hours more than 8 hours
 - Overtime pay = ORP x 3

3.5.5 Overtime pay for salary above RM 4000.00 conditions:-

- Monday to Friday from 6.00 pm to 7.00 am the next day
- Rest day and Public Holidays
- Overtime pay = HRy x OT hours OR Time Off in Lieu (TOIL) / Compensatory Time depending on CEO approval

3.6 Commissions

3.6.1 Eligibility

- Only employees from Business Development department are entitled to Commissions
- Both probations and confirmed staff are eligible to claim the commissions, subject to the clause 3.8.2, Commissions Payment Release.

3.6.2 Commissions Payment Release

- Finance department will provide the Commissions Tracker to keep track of the commissions for each eligible employee.
- Finance department will register the confirmed deals with approved Purchase Order (PO) for each eligible employee.
- HR department will communicate with Finance department to get the payment updates for each registered deals.

3.7 Annual bonus

- The annual bonus payment are non-contractual in nature and shall be at the discretion of the company and shall be based on annual performance appraisals as well as past performance improvement, dependability, attitude, cooperation, disciplinary action taken, adherence to all company policies and the salary range of the employee's position.
- The bonus will be announced at the end of every year or early January of the respective year depending on the rate that will be determined by the Senior Management and CEO.

Section 4: Leave

4.1 Paid Leave

4.1.1 Annual leave

- All permanent and confirmed employees shall be entitled to eighteen (18) days annual leave.
- The annual leave shall be granted after successful completion of their probationary period, and it will be a continuity for any taken leaves during the probationary period.
- For other types of employment, shall refer to clause 2.5, Leave rule.
- Application of leave, shall refer to clause 2.5, Leave rule.
- Approval of leave is subject to operational requirements where the amount of leave taken at a time may need to be changed in accordance with the operational needs.
- An employee is allowed to take Half Day Leave which is deducted from an employee's annual leave eligibility. An employee can select half day leave either in the morning or afternoon as follows:-

Session	Half Day Leave
Morning (am)	8.00 am - 12.00 pm
Afternoon (pm)	2.00 pm - 5.00 pm

- All employees are entitled to carry forward the Annual Leave up to maximum 10 days with conditions:-
 - Maximum 5 days can be utilised until March the following year
 - The remaining days need to be utilised in January the following year
 - Any remaining days after March the following year will be removed

4.1.2 Sick Leave

Employees are entitled to paid sick leave in accordance with the Employment Act 1955, subject to certification by a registered medical practitioner or medical officer appointed by the Company, as follows:

- **Fourteen (14) days** per calendar year where the employee has been employed for less than two (2) years
 - **Eighteen (18) days** per calendar year where the employee has been employed for two (2) years or more but less than five (5) years
 - **Twenty-two (22) days** per calendar year where the employee has been employed for five (5) years or more
- In addition, employees are entitled to sixty (60) days of paid sick leave per calendar year if hospitalisation is necessary, as certified by a registered medical practitioner or government medical officer.
 - In cases of emergency, an employee may obtain a medical certificate from any registered medical practitioner.
 - An employee who is unable to attend work due to illness must notify his/her Head of Department (HOD) or immediate supervisor as soon as reasonably practicable and no later than 10:00 a.m. on the scheduled workday, unless circumstances prevent earlier notification.
 - The medical certificate must be submitted to the Supervisor for verification and uploaded into the HRIS system on the first day the employee returns to work.
 - Failure to inform or attempt to inform the Company of the absence within forty-eight (48) hours from the commencement of the sick leave, without reasonable excuse and valid medical certification, may result in the absence being treated as unauthorised and may subject the employee to disciplinary action.

4.1.3 Hospitalization leave

- Where hospitalization is necessary, an employee shall be entitled to paid hospitalization leave of sixty (60) aggregate days in each calendar year.
- For this purpose, the total number of sixty (60) days of hospitalization leave shall be **excluded** from any sick leave previously taken in that year.
- An employee or his/ her representative shall notify the HOD as soon as the employee is admitted in the hospital.
- Within three (3) days of hospitalization, the employee or his/ her representative must notify the HOD and HR Department for the duration of the hospitalization leave and expected date to resume work.
 - It is the responsibility of the HOD to ensure that HR Department is fully aware of such notification.
- An employee is requested to produce the hospitalization leave certificate to the HOD for verification and then to submit to the HR Department on the first day the employee returns to work.

4.1.4 Compassionate leave

- The company shall grant three (3) consecutive working days of paid compassionate leave to an employee in any calendar year under the following circumstances :
 - Natural disasters which affect the employee's person or property, such as flood, fire and landslide.
 - Death of spouse, child, siblings and parents.
 - Death of parents-in-law.
- The employee shall produce documentary evidence to qualify for compassionate leave.
- Any employee found obtaining compassionate leave through mislead of facts shall be subjected to disciplinary action.
- Any circumstances other than the above shall be treated as emergency leave.

4.1.5 Marriage leave

- An employee shall be granted paid marriage leave for three (3) consecutive working days on his/ her legal marriage.
- Application for marriage leave shall be supported by a marriage certificate and entitled for first marriage only.

4.1.6 Paternity leave

- Male employees shall be granted seven (7) consecutive working days of paid paternity leave on the birth of the child by his legal spouse.
- The employee shall produce the birth certificate of his child in order to qualify for the paternity leave.

4.1.7 Maternity leave

- Every female employee shall be entitled for paid maternity leave for a period of ninety eight (98) consecutive days in respect of each confinement up to 5 surviving children/confinement.
- The ninety eight (98) consecutive days of maternity leave shall be inclusive of off days, rest days and public holidays.
- A female employee who has completed not less than ninety (90) continuous days of service with the Company during the nine months immediately before her confinement.
- Maternity leave shall be granted on or after the **22nd week** of pregnancy. Miscarriage as defined in the Employment Act, 1955 will be treated as a normal sick leave.
- To facilitate the planning of work schedule during the female employee's absence, application of maternity leave shall be made at least two (2) weeks before the start of the maternity leave.

4.1.8 Work anniversary leave

- An employee shall be granted paid work anniversary leave for one (1) day on his/her work anniversary month.
- The leave is non-transferable to other month, any unused leave will be forfeited.
- Only entitled for permanent and confirmed staff.

4.1.9 Birthday leave

- An employee shall be granted paid birthday leave for one (1) day on his/her birthday month.
- The leave is non-transferable to other month, any unused leave will be forfeited.
- Only entitled for permanent staff and confirmed staff.

4.2 Unpaid leave

- An employee may apply for unpaid leave when:
 - His/ her annual leave has been duly exhausted.
 - All medical leave for the year has been duly exhausted but the employee has been deemed as medically unfit by the Company's panel doctor or a registered medical practitioner.
- Unpaid leave shall be granted to employees at the sole discretion of the Company and based on the merit of each individual case.

4.3 Absent without leave (AWOL)

- An employee must confirm his/ her leave application has been approved before going on leave.
- An employee who has not had his annual leave approved and then fails to report for work shall be deemed to be absent without leave.
- After investigating, where necessary, the company may take appropriate disciplinary action which involves issuing an official HR Showcause or Warning Letter.

4.4 Leave encashment

- Employees who resign, retire or retrenched from their services shall be granted an annual leave on a pro-rated basis for the completed days of service in the Company, or will be paid for all accrued annual leave not taken.
- This clause only applies to permanent or confirmed employees.
- The unutilised prorated annual leave is calculated:
 - Total annual leave is 18 days for 12 completed months
 - E.g. the last working day is 30/6/2022
 - The entitled leave is 9 days
 - The utilised leave as to date is 6 days
 - The balance for encashment is 3 days
 - E.g. the last working day is 31/3/2022
 - The entitled leave is 4.5 days
 - The utilised leave as to date is 5 days
 - The over utilised leave is 0.5 days, and shall be deducted from the final payroll
- The amount of leave encashment and deduction calculation shall refer to clause 3.4, pro-rated salary calculation

Section 5: Claimable Expenses

[All claimable expenses need to be applied in the updated HR system and each receipt can only be used for one type of claim]

5.1 Health and wellness

- 5.1.1 Outpatient medical claim (OMC)
 - RM 500/year
 - Entitled for both probation and permanent staff
 - Entitled for employee or family members
- 5.1.2 Health and Wellness
 - RM 400/year
 - Entitled only for permanent staff or family members
- 5.1.3 Dental and/or optical
 - RM 300/year
 - Entitled only for permanent staff
- 5.1.4 In-patient medical insurance (IMC)
 - Entitled only for permanent or contract staff
 - Annual limit per employee capped to RM 75,000 for any admission, emergency accidental outpatient service, emergency dental outpatient service up to 30 days of treatment. (subject to change)
 - Including life insurance policy per death of the employee of RM 10,000. (subject to change)
 - Warded room admission for RM230 per day (unlimited).
 - Each permanent staff member will be given a medical card with their personal details, it does not carry any value. However it can be used for admission for an easier process.
 - If the admission cost more than the annual limit of RM 75 000, the employee needs to pay the remaining balance of the cost using their own personal policy OR their own source of income. Company is not entitled to cover the remaining cost.
 - This medical insurance is only applicable in Malaysia, any admission or accidental of an event that occurred outside of the country is not covered.
 - Any admission or accidental event, the employee need to inform HR or directly with our company insurance agent:
 - Bryan, Hu Wai Mun
 - 010-2216754

5.2 Travel and transport

- 5.2.1 Office parking
 - This clause is refer to employees who own a car and need a parking space at the office.
 - This claim will be reimbursed on a monthly basis.
 - Entitled for both probation and permanent staff
 - Train station's parking tickets are claimable but only if it's to go to our Tapway office
 - Office parking receipts:
 - Pacific Place valet parking ticket
 - Touch n go receipt for basement parking of Pacific Place
- 5.2.2 Travel claim
 - This clause refers to employees who need to travel on a daily basis for work requirements using their own car.
 - This claim will be reimbursed on a monthly basis.
 - Trip purposes:
 - Meet with clients or partners.

- Attend events, like conferences, where you'll represent our company.
- Conduct research or give talks/ lectures/ presentations on behalf of our company.
- Attend any office matters - subject to HOD approval
- Not applicable trip to and from office location
- Mileage claim rate:-
 - 0 - 300km = RM 0.80/km
 - 301km and above = RM 0.50/km
 - The rate will be counted per trip with valid work purposes
 - Proof of Google Maps screenshot and Attendance system report of the trip is required
- Taxi/Grab, toll and parking rate:-
 - 150 capped per month
 - Receipt for each fares is required and only for work purposes
- Flight/train ticket rate:-
 - Unlimited at economy class but upon HR approval
 - Ticket receipt is required
 - Allowed for outstation only
- Meals claim allowance:-
 - RM 50/day for local outside of Klang Valley
 - 30 USD/day for outstation
 - Meals receipt is required
- Accommodation claim allowance:-
 - RM 250/day (Malaysia outside of Klang Valley)
 - USD 100/day (Overseas)
 - Booking receipt is required

5.3 Working essentials

5.3.1 Phone bill allowance

- Entitled for:-
 - Director = RM 80/month
 - Other relevant employees/managers = RM 50/month

5.3.2 Work from Home Expenses

- RM 200/year in a single receipt
- Entitled for permanent and confirmed staff only

Section 6: Training and Development

- The company shall encourage the training and development of its employees to further motivate them to contribute more effectively to the company's overall business growth and expansion.
- Training programs shall be intended to improve the current performance of an employee in a particular skill, knowledge and attitude of the employee. Such training has to be relevant to business goals, direction and job demands.
- The HOD shall be responsible to identify any particular knowledge or skill deficiencies that may have prevented the effective performance of duties of an employee.
- For the purpose of bidding management, the respective Department Head will appoint qualified employees to attend company sponsored courses which have been identified.

6.1 Training Course or Certification Program

- The employee will have to sign a bonded agreement with the company when attending any Training Courses or Certification Program sponsored by the company. The period of the bonded agreement is dependent on the Course or Certification Value as follows:

Course Value	Bonded Period
Less than RM 10,000	12 months
RM 10,001 - RM 20,000	24 months
More than RM 20,000	36 months

- The HR Department is responsible for course and certification program arrangement to the participants and maintaining the training records.
- In the event the employee violates the terms of the Agreement by not continuing employment with the Company for the period stipulated herein, then he /she shall pay back the **full amount** of the training course to the Company.

6.2 Training Module

- The training cost must be less than RM 5,000 and does not provide any certificate. (subject to change)
- The employee won't have to sign a bonded agreement with the company when attending the training.
- The HR Department is responsible for the training arrangement for the participants and maintaining the training records.

Section 7: Discipline and Misconduct

7.1 Disciplinary

- 7.1.1 The company shall take disciplinary action against any employee who contravenes the Company's rules, regulations, criminal offence, misconduct, inefficiency, insubordination or Non-performance.
- 7.1.2 The purpose of disciplinary action shall be :
- Corrective in nature, and not meant to be punitive.
 - Ensure fair and equitable treatment of all employees.
 - The procedures are designed to be progressive.
- 7.1.3 Corrective interview shall be implemented for the following purposes :
- For the purpose of employee's improvement targets where it should be documented and kept at the departmental level.
 - Each HOD is responsible for counseling and administering the disciplinary procedure in all disciplinary problems under his area of operation.
 - Respective HOD shall immediately speak to the employee person to person basis on the act of misconduct or indiscipline by the employee.
- 7.1.4 HOD may issue verbal warnings to their respective subordinates :
- When the corrective interview fails.
 - The employee commits the first violation of a minor rule.
 - The verbal warning will be recorded and to be kept at the department level.
 - Depending on cases, HOD may seek advice from the HR department.
 - Written warning will be issued to the respective employees :
 - When the violations after a verbal warning occur, serious rule violations occur for the first time.
 - Based on the findings and recommendation, the HR department shall issue written warnings to the employees concerned and the records will be kept in the employee's personal file.
- 7.1.5 Final written warning
- The HR department shall issue the final written warning when the violation been occurred after a verbal and written warning.
 - Disciplinary action shall be taken after the final warning.
- 7.1.6 Domestic Inquiry (DI)
- Company shall apply the principles of Domestic Inquiry (DI) in accordance with the IRA 1967, and guidelines laid down by the Industrial Court.
- 7.1.7 Suspension
- When the current incident is unclear pending further investigation or inquiry before a final decision is made.
 - For the purpose of holding a domestic inquiry, it shall be half pay for a period not exceeding fourteen (14) working days.
 - The employee concerned shall not be required to report for duty until the completion of the suspension period.

- After the period of fourteen (14) days, the period of suspension will be with full pay until such time enquiry is completed.

7.1.8 Due Inquiry.

- An employee facing serious disciplinary action shall be served a 'Show Cause' Letter outlining the charges alleged against him/ her.
- Subject to the reply from the employee, company will proceed with the inquiry.

7.1.9 After due investigation or inquiry, the company may:

- Give employee a written warning.
- Suspend the employee without pay for a period not exceeding two weeks.
- Downgrade the employee.
- Dismiss the employee without notice.
- Impose any lesser punishment the company may deem fit.

7.1.10 Right to appeal

- An employee who is subject to any disciplinary act shall have the right to appeal directly to the Chief Executive Officer in writing.

7.1.11 Termination/ Dismissal

- Termination or dismissal would result when all the above procedures fail to correct. After due inquiry, the company reserves the right to terminate without notice, pay or other forms of compensation deems fit.
- The company's right to dismiss shall be deemed to include the right to suspend, demote or otherwise discipline an employee in lieu of discharge.
- With accordance to the Employment Act 1955, the Company has the right to dismiss the service of an employee who is absent from work for more than two (2) consecutive working days without reasonable excuse and without informing or attempting to inform his superior of such absence.

7.1.12 For unsatisfactory of work, attitude or behavior (except in case of proven dishonesty or immorality) an employee will be advised and given opportunity to improve and correct his weaknesses. Appropriate disciplinary action will be imposed when there is no mark of progression from the employee after given reasonable time for him/ her to improve.

7.1.13 Act of misconduct

- Habitual lateness in reporting for duty.
- Breach of trust.
- Rude or rowdy of misbehaviour at work place or in company premises.
- Threatening, intimidating, compelling or interfering with fellow employees.
- Using abusive or threatening language to Supervisor and other employees.
- Absence from work without Supervisor's consent or approval.
- Willful insubordination or disobedience to any lawful and reasonable order from Supervisor.
- Any act not in compliance with the safety and security procedures.
- Consume alcoholic beverages during working hours or after working hours in the Company's premise or while carrying out any official duties out of office.
- Convicted or imprisonment for criminal offence.
- Commit an immoral act within the Company's premises.
- Forge or deface medical certificate or other official documents.

- Gamble, play cards or conducting any illegal gambling activities of any form.
- Posting materials, pornography, banned publications within the company's premises.
- Sleeping while on duty.
- Theft or attempted to steal the Company's or employee's properties.
- Sexual harassment.
- Unauthorized use of company's vehicles or equipment.

7.1.14 The disciplinary procedures which are imposed will depend on the severity of an offense.

7.2 Punctuality and attendance

- Each employee is required to **Clocking In and Clocking Out** via **Jibble App using Mobile Phone only** for GPS tracker when reporting to work and leaving the company's premises for the 3 days **work from office** policy.
- Each employee is required to **Clocking In and Clocking Out** via **Jibble App** using any platform when **working from home** or any location up to their choices for the remaining 3 days.
- Employees located at customers' premises, are required to **Clocking In and Clocking Out** via **Jibble App** at the time of reporting to work and leaving after work under activity **"On-Site"**.
- Employees need to fill in Scrum updates via Slack right after clocking in via Jibble app **BEFORE 11AM MYT**. If scrum is submitted after 11AM, it will be considered as 1 strike. (Applicable to certain departments)
- If the employee reaches 3 strikes, HR will need to issue a first Warning Letter and disciplinary action will be taken.
- An employee who forgets to clock in and out shall immediately notify HR Department for verification of his/ her attendance.
- Employees who do not clocking in and out during normal hours of work shall be considered as absent from work (MIA), unless with justifiable reason.
- If an employee is unable to be present to work, he/ she must inform his/ her immediate HOD before 10.00AM MYT on the same day.
- The HR department monitors employees' attendance and imposes disciplinary action to late comers who without reasonable excuse, unless justifiable and approved reason by respective HOD.
- The HOD must counsel the late comers and take necessary steps to overcome the setback before any actions to be taken by the HR Department.
- Regular late attendance shall be categorized as 'Major Misconduct' and appropriate disciplinary action shall be taken on habitual late comers.

7.3 Bribery, damage and theft

- The company does not condone bribes (in cash or in-kind) or any other illegal, secret or improper payments, transfer, or favors. This applies both to the employee giving and receiving payments or gifts. For the purpose of improving a business relationship, a gift or reasonable value may be offered with the approval of the CEO. If prior approval is not available when you receive unsolicited gifts, you must declare it and hand it over to the company.
- You shall not take part in the misuse of company funds, including, without limitation, the misappropriation of such funds for personal benefit or its customers.
- No outside agent of any kind shall be used to circumvent the prohibition against bribes, kickbacks, and other illegal, secret, or improper payments. Fees, commissions, and expenses paid to outside agents must be approved and be based upon proper billings. accurate recordkeeping and reasonable standards for services rendered.

7.4 Smoking, alcohol and drug abuse

- Alcoholic beverages and dangerous drugs which are not on prescriptions are not to be consumed on Company premises.
- An employee who reports to work under the influence of alcohol or drugs shall be grounds of disciplinary action which may result to dismissal.

- Smoking is strictly prohibited in all indoor areas and where the signage 'No Smoking' are displayed.

7.5 Prevention of sexual harassment

- Sexual harassment means any unwanted conduct of a sexual nature having the effect of verbal, non verbal, visual, psychological or physical harassment.
- HOD personnel shall protect his/ her subordinate from such harassment by providing advice and help.
- An employee who believes that he/ she has been the subject of sexual harassment should report the alleged act to his HOD who then forward the case to the HR Department for further action.
 - An employee making false accusations shall be subjected to disciplinary action.
 - An employee who is guilty of sexual harassment shall be sentenced which includes dismissal.

7.6 Occupational Safety and Health (OSHA)

- The objectives of OSHA in the company are to reduce or eliminate work related injuries, and to implement safe work practices.
- The company shall comply with OSHA Act 1973 regulations and standards in implementing safe work practices.
- It is the responsibility of the HOD for the safety of equipment and property within his/ her area of responsibility.
- All HOD must enforce safety rules to their department and to give full support of all safety procedures, activities and programs.
- All employees shall adhere to the safety rules and to implement safe work practices.
- All employees must report any accidents, injuries and illness that occurred to their HOD promptly.
- It is the responsibility of all employees to identify unsafe condition that exist in the workplace.

Section 8: Intellectual Property

- **Work for Hire:** The Employee acknowledges that all work, including but not limited to code, software, algorithms, documentation, designs, inventions, processes, and business strategies ("Intellectual Property") created, developed, or contributed to by the Employee during the course of employment, shall be deemed "work made for hire."
- **Assignment of Rights:** To the extent that any such Intellectual Property does not automatically vest in the Company by operation of law, the Employee hereby irrevocably assigns and transfers to Tapway Sdn Bhd all rights, titles, and interests in said Intellectual Property.
- **Perfection of Rights:** The Employee agrees to sign any documents, affidavits, or agreements required by the Company to formalize, register, or perfect the Company's ownership of such Intellectual Property, both during and after the tenure of employment.
- **Moral Rights:** The Employee explicitly waives any moral rights regarding the Intellectual Property to the fullest extent permitted by the *Copyright Act 1987*.

Confidentiality

- Employees shall not, during or after their employment, disclose any confidential information (Client lists, technical data, financial details) to third parties.
- Breach of confidentiality is considered Major Misconduct and may result in immediate dismissal and legal action for damages.